

		responses. (ROA 120.) In contrast, Martinez’ evidence shows that plaintiff has served a settlement offer to compromise in the amount of \$99,999 (ROA 141, Zurawski Decl., ¶ 2), which well exceeds the amount of the current \$25,000 settlement. There is also no evidence of settlor’s financial condition, and/or whether settlor has any other assets to satisfy a potential judgment. (<i>Tech-Bilt, supra</i> at 499; see also <i>Grand Terrace, supra</i> at 1263-1264 [“The wealth or nonwealth of the settling defendant is a factor for the trial court to consider under <i>Tech-Bilt</i>”].) While settlor provides a signed “Affidavit of No Other Insurance,” which also indicates settlor was not in course and scope of employment, the attached affidavit is not under penalty of perjury. (Code Civ. Proc., § 2015.5 [declarations/affidavits must be “subscribed” under penalty of perjury by declarant]; <i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal. 4th 601, 612 [a declaration which does not comply with Code Civ. Proc., § 2015.5 is “defective” and of no evidentiary value].) Moving defendant Joseph Emanuel Martinez shall give notice.
12	Wynne vs. FCA US LLC 2026-01556389	Motion to Enforce CCP 871.26(H) <i>Continued to 10/21/26 in Department CM02.</i>